

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
DAVID GAMBLE,

Plaintiff,

- against -

**THE CITY OF NEW YORK and
DETECTIVE JEREMY VEIT of NBBX,**

Defendants.
-----X

Index No. _____

Purchased _____

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
December 12, 2013



THE LAW OFFICE OF ANDREW BOTTARI
Attorney for Plaintiff
445 Hamilton Avenue, Suite 405
White Plains, New York 10601
(914) 682-1995

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

RECEIVED
14 JAN 17 3 16 PM '14
COUNTY CLERK
BRONX COUNTY

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
DAVID GAMBLE,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK and
DETECTIVE JEREMY VEIT of NBBX**

Defendants.
-----X

14 JAN 17 PM 12:51
COUNTY CLERK
BRONX COUNTY

RECEIVED

Plaintiff DAVID GAMBLE, by his attorneys THE LAW OFFICE OF ANDREW BOTTARI, by ANDREW BOTTARI, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DAVID GAMBLE was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant DETECTIVE JEREMY VEIT of NBBX ("DET. VEIT") was and is a police officer employed by Defendants.

BACKGROUND

5. On October 3, 2012, at approximately 11:00 p.m., without just cause or provocation, DET. VEIT, a detective with the NEW YORK CITY POLICE DEPARTMENT, intentionally and falsely accused Plaintiff of having committed the crime of Criminal Sale of a Controlled Substance in the third degree and related charges.
6. Specifically, on October 3, 2012, at approximately 11:00 p.m., in the vicinity of the corner of 172nd Street and Vyse Avenue in Bronx County, Defendants, their agents, servants and/or employees, including DET. VEIT, handcuffed Plaintiff and arrested Plaintiff in the absence of probable cause and with reckless and negligent disregard for the truth.
7. On or about October 4, 2012, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff was commenced.
8. The criminal matter was terminated in favor of Plaintiff, in that all charges against him were dismissed, upon information and belief, on or about January 29, 2013 by the Office of the Bronx District Attorney.

PROCEDURAL POSTURE

9. On March 13, 2013, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of his arrest and confinement as described in paragraphs 5-7, and he did not consent to that arrest or confinement.

16. As a result of being falsely arrested by the Defendants, Plaintiff sustained multiple injuries. He was denied liberty. He also suffered emotional distress, humiliation and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.

18. The Defendants, their agents, servants and employees, arrested and confined Plaintiff, as described in paragraphs 5-7, and intended to confine Plaintiff. Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

19. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. In arresting Plaintiff, DET. VEIT, acting in his capacity as an agent, servant and employee of the Defendants, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

22. In arresting Plaintiff, DET. VEIT, acting in his capacity as the agent, servant and employee of the Defendants, sought either a detriment to Plaintiff or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

23. As a result of the abuse of process by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. In arresting Plaintiff, the Defendants acted with malice.

26. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

27. All charges were dismissed and sealed upon the application of the District Attorney on January 29, 2013.

FIFTH CAUSE OF ACTION: NEGLIGENCE

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

30. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.
32. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of DET. VEIT and the NYPD officers involved in this matter.
33. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
34. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
35. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.
36. As a result of the negligence of defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.
38. The Defendants had the responsibility for hiring DET. VEIT.

39. The Defendants were negligent in hiring DET. VEIT.

40. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION: ASSAULT

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. Defendants, including, DET. VEIT, placed Plaintiff in apprehension of imminent harmful or offensive contact. Defendants, including DET. VEIT, grabbed Plaintiff and threw Plaintiff into a fence. Next, Plaintiff was thrown to the ground, causing injuries to Plaintiff's back and knees. Shortly thereafter, Plaintiff was pushed face first into the side of a police van and then shoved inside of the van, causing Plaintiff to strike his head on the seat.

43. As a result of being assaulted by Defendants, Plaintiff sustained multiple injuries, including injuries to his head, back, wrists and knees. Plaintiff also suffered the loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: BATTERY

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.

45. When defendants, including DET. VEIT, grabbed Plaintiff, threw him into a fence and then pushed him against the side of a police van, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of Plaintiff.

46. As a result of being battered by defendants, Plaintiff sustained multiple injuries, including injuries to his head, back, wrists and knees. Plaintiff also suffered the loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: White Plains, NY
December 12, 2013

Yours, etc.,

A handwritten signature in black ink, appearing to be 'A. Bottari', is written over a horizontal line.

THE LAW OFFICE OF ANDREW BOTTARI
Attorney for Plaintiff
445 Hamilton Avenue, Suite 405
White Plains, New York 10601
(914) 682-1995

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
DAVID GAMBLE,

Plaintiff,

- against -

Index No.

Purchased: _____

Verification

**CITY OF NEW YORK and
DETECTIVE JEREMY VEIT of NBBX,**

Defendants.

-----X

I, **ANDREW BOTTARI**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, NY
December 12, 2013



ANDREW BOTTARI

SUPREME COURT of the STATE OF NEW YORK
COUNTY of BRONX

DAVID GAMBLE,

Plaintiff,

- against -

CITY OF NEW YORK and
DETECTIVE JEREMY VEIT of NBBX,

Defendants.

SUMMONS & COMPLAINT; VERIFICATION

BOTTARI & ASSOCIATES, PC

Attorneys at Law

Attorney for Plaintiff

445 Hamilton Avenue

Suite 405

White Plains, NY 10601

T914 682-1995

F914 798-6675

andrewbottari@verizon.net

Service on Clerk of Court
Via Hand Delivery.

January __, 2014



Andrew R. Bottari. Esq.
